

**IN THE CIRCUIT COURT OF THE SECOND JUDICIAL CIRCUIT IN AND FOR LEON
COUNTY, FLORIDA**

CASE NO.: 2025-CA-2469

CHRISTOPHER HANSON, Plaintiff/Petitioner,

v.

THE FLORIDA BAR, RICHARD COURTEMANCHE, ALLIE HUSTON, and ALICIA
GANGI, Defendants/Respondents. _____/

**PLAINTIFF'S RESPONSE IN OPPOSITION
TO DEFENDANTS' MOTION TO DISMISS**

I. CITATION KEY

1. For clarity and precision, this Response uses the following citation abbreviations:
 - PIM: Plaintiff's Motion for an Immediate Writ (104 pages) DOCKET #26
 - ApW: Appendix to Petition for Writ of Mandamus (285 pages) DOCKET #6
 - MtD: Defendants' Motion to Dismiss (19 pages) DOCKET #28
 - PWM: Petition for Writ of Mandamus (26 pages) DOCKET #4
 - Exhibit A – provided below starting at p. 16 – PowerPoint from Defendant Courtemanche's seminar on Florida Public Records
2. Page numbers follow each abbreviation to indicate the exact page cited.

**II. INTRODUCTION AND CRITICAL DISTINCTIONS IN PRESENT FACTS FROM
CASES CITED IN DEFENDANTS' MOTION TO DISMISS.**

3. The Florida Bar Defendants move to dismiss this action by relying on *Cole v. Owens*, 766 So. 2d 287 (Fla. 4th DCA 2000), that shields them from liability for damages resulting from their discretionary decisions. However, that case law is wholly inapplicable to the instant Petition. (MtD, p. 5-7).

4. The Plaintiff is not seeking monetary damages for a "bad decision." (PWM, p. 3)
5. The Plaintiff is seeking a Writ of Mandamus to compel the performance of ministerial duties and the production of public records. (PIM, p. 63 ApW, p. 12, 283).
6. The relevant distinctions (between the present facts and the law cited in defendants' motion), each fatal to the Defendants' Motion are:

A. Jurisdictional Distinction: While the Supreme Court has exclusive jurisdiction over attorney discipline and discretionary matters involving Defendants (the outcome), the Supreme Court has explicitly delegated jurisdiction to the Circuit Court under Fla. R. Gen. Prac. & Jud. Admin. 2.420(e)(2) to enforce access to judicial records from and performance of ministerial duties by Defendants (the Process). (PIM, p. 63).

B. Immunity/Relief Sought Distinction: Defendants cite cases like *Cole* and *Henry v. Harkness* to claim "absolute immunity." These cases apply to suits for civil liability (money). Immunity does not protect an official from a Writ of Mandamus compelling them to perform a mandatory duty required by law. As the Court explained in *Tyson v. Fla. Bar*, 826 So. 2d 265 (Fla. 2002)

C. The "Tyson" Distinction: Defendants rely on *Tyson* to argue the Court cannot intervene. However, *Tyson* explicitly states that "mandamus lies to compel the performance of a specific imperative ministerial duty." In *Tyson*, the writ was denied only because the Bar had already conducted an investigation. Here, the Bar failed to open or perform the investigation (a ministerial duty created by Rule 3-7.3) thus failing its ministerial duties subjecting its representatives to mandamus through this Court as requested. As explained below, it appears the bar admits that it did not open an investigation.

7. The Defendants ask this Court to dismiss the case based on authorities that protect their judgment.
8. The Plaintiff asks this Court to enforce the rules that govern their process including ministerial duties that fall within their duties in conducting state business.

III. STANDARD OF REVIEW

9. In ruling on a Motion to Dismiss, the Court must confine its review to the four corners of the complaint, accept all well-pleaded allegations as true, and draw all reasonable inferences in favor of the Plaintiff. *Ashcroft v. Iqbal*, 556 U.S. 662 (2009) [Source 811]; *City of Gainesville v. State, Dep't of Transp.*, 778 So. 2d 519 (Fla. 1st DCA 2001). The Defendants' factual assertions that records "do not exist" are extrinsic to the pleadings and improper for a Motion to Dismiss. (MtD, p. 10).
10. In addition to the Motion to Dismiss standard requiring the Court to accept Plaintiff's factual allegations as true, the Court must apply the constitutional standard for judicial records.
11. As the Florida Supreme Court held in *Barron*, 'a strong presumption of openness exists' and '[t]he burden of proof is always on the party seeking closure.'

VI. IMPORTANT FACTS TO NOTE FROM DEFENDANTS' MOTION TO DISMISS

A. ADMISSION ON LACK OF ANY INVESTIGATION

12. Defendants describe the relevant actions the Bar took in relation to the subject complaint on Mr. Davis at p. 1-4.
13. Defendants never allege that the Florida Bar opened an investigation nor investigated the complaints in any meaningful way.

14. This is determinative on Plaintiff's right to Mandamus regarding the Bar's duty to

"investigate" under **Rule 3-7.3(c)** of the Rules Regulating The Florida Bar which states:

"Initial Review and Investigation. The bar shall investigate any alleged misconduct or incapacity of a member of the bar called to its attention by a grievance complaint or otherwise that, if proven, would constitute a violation of the Rules Regulating The Florida Bar or the Integration Rule of The Florida Bar."

15. The mandatory, "shall" language, creates a ministerial duty subject to mandamus actions like the one pending before this Court.

B. Defendant's Apparent Change in Position about what records exist (or at least existed at one time) vs. what exists in the limited documents Defendants decided to compile as "the Entire Public Record."

16. At p. 10, Defendants create the straw man argument, "we can't produce records that don't exist."

17. The first paragraph of that section explains that the Bar provided Plaintiff with "the entire Public Record."

18. The next paragraph begins, "Such records were not provided because they do not exist."

What records? Why "Such" records?

19. It's ambiguous, likely intentionally so, whether Defense Counsel is representing to the Court that;

1) no additional correspondence between any Bar representative and Davis *exists as part of the public record (what was provided to Plaintiff)*, OR,

2) If Defendants position is that *no such correspondence with Davis exists whatsoever, anywhere now, or anytime in the past.*

20. That is a critical distinction, although Mandamus is still required as explained herein under both scenarios.

21. Constitutional transparency demands mandamus on public access to at least an answer on whether correspondence with Davis exists and/or existed. (MtD, p. 10; ApW, p. 283-284).

C. Defendants' Attempts to Mischaracterize This Legitimate Attempt to Obtain Public Records related to an Extreme and Expanding Case of Attorney and Judicial Corruption Gone Wild, as the rantings of a bitter divorce litigant

22. Admittedly, Plaintiff's Petition states that discipline is appropriate in the case as background and support for the pleas to this Court for fairness and efficiency, although **discipline is no part of the relief requested.**

23. Plaintiff only requests compliance with the ministerial duties to investigate and all that comes with that including the duties under Rules 3-7.1, 3-7.3, 3-7.4 and 3-7.11.

24. It's also important to note that Defendants cut and paste 2 full pages of facts from Plaintiff's petition, while failing to refute any of the facts.

25. Defendants apparently include 2 pages of verifiable facts in an apparent attempt to paint Plaintiff as a simple, disgruntled litigant.

26. If Defendants could point out that Plaintiff is lying or even just exaggerating about the extent of attorney and judicial misconduct, they obviously would have done so, acting as another tacit admission about the Bar's and their defense counsel's understanding of the true scope of misconduct and dishonesty that now controls his and his family's rights.

27. The facts recited by defense counsel in an effort to mischaracterize and shame plaintiff create a very concerning picture of the current state of Florida's legal and judicial ethics and the appalling lack of good faith oversight. (MtD, p. 4-6, ApW, p. 283-284).

V. ARGUMENT

28. Under *Barron*, there is a “strong presumption of public access” to judicial records.

Barron v. Fla. Freedom Newspapers, Inc., 531 So. 2d 113 (Fla. 1988).

29. The burden of proof is always on the party seeking closure to demonstrate that a specific exemption applies and that the closure is as narrowly tailored as possible.

30. In Considering the facts and law, it’s important for the Court to properly place the burden on defendant to demonstrate an exemption and narrow exception, for which there is an appalling lack of any attempted compliance with their official duties.

A. DISTINGUISHING *COLE V. OWENS*: MANDAMUS VS. TORT LIABILITY

31. The Defendants’ primary argument is that they are absolutely immune from suit under *Cole v. Owens*, 766 So. 2d 287 (Fla. 4th DCA 2000). This reliance is misplaced due to the fundamental difference in the relief sought (among further grounds below for inapplicability).

32. In *Cole*, a disgruntled complainant sued Bar officials for "tort claims" and "civil rights violations," seeking monetary damages because he disagreed with their decision to close his grievance. The Court held they were immune from liability [Source 625].

33. The Distinction Here: Plaintiff Hanson is not suing for tort damages. He is petitioning for Mandamus. Absolute immunity protects officials from personal liability for their discretionary acts; it does not immunize them from a court order requiring them to perform the mandatory duties of their office. (PWM, p. 4; ApW, p. 12).

34. If immunity barred Mandamus, no citizen could ever compel a government official to produce a public record or follow a procedural rule.

35. That seems to be the system for which Defendants are advocating – if an insider like Davis is accused, and the powerful fellow insiders at the bar want to dispose of it, that's simply what they do.
36. However, they fail to meet mandatory duties when proceeding in that manner and the law still provides for mandamus in this precise scenario before the Court.

B. THE "TYSON" DISTINCTION: MINISTERIAL PROCESSES (Present facts) VS. DISCRETIONARY OUTCOME (Cases Defendants cite)

37. Defendants argue this Court lacks jurisdiction to review their handling of the grievance against attorney Scott Davis.
38. Plaintiff readily agrees this Court cannot tell the Bar how to decide the case (Discretionary). (PWM, p. 4; ApW, p. 16-18).
39. Defendants seek to reframe Plaintiff's requests as one for discipline because they know that Plaintiff's actual request is clearly subject to mandamus enforcement under this Court's jurisdiction in an expedited manner.
40. However, this Court absolutely can order the Bar to open and investigate the case as required by its own rules, as specifically addressed in *Tyson*:
- **The Florida Supreme Court held that "mandamus lies to compel the performance of a specific imperative ministerial duty." *Tyson v. The Florida Bar*, 826 So. 2d 265 (Fla. 2002)**
 - **The Court denied Tyson's petition only because the record showed the Bar "conducted an independent investigation" and "obtained a response" from the accused. *Id.***
41. Unlike in *Tyson*, Plaintiff alleges the Defendants failed to conduct the investigation mandated by Rule 3-7.3(b) and refused to confirm if they even "obtained a response" from Attorney Davis, in violation of of Rule 3-7.1(b)."

42. These duties are ministerial in nature and required based on defendants' status as employee's of the Judicial Branch of Government.
43. Under *Tyson*, the defendants' failures require mandamus as relief given the basic facts of the case before this Court.
44. Rule 3-7.3(d) states a file may be closed only "after complete investigation." [Source 467].
45. Because the investigation is a mandatory condition precedent to dismissal, it is a ministerial duty. Plaintiff seeks to compel the investigation (the process), not the discipline (the outcome).

C. JURISDICTION OVER RECORDS: THE RULE 2.420 MANDATE

46. Defendants argue the Circuit Court lacks subject matter jurisdiction because the Florida Supreme Court has exclusive authority over the Bar. This ignores the Supreme Court's own rules regarding public records.
- The Rule: Fla. R. Gen. Prac. & Jud. Admin. 2.420(e)(2) explicitly states that for denials of access to judicial records "not involving a judge as the custodian, actions for enforcement must be filed in the circuit court" [Source 363].
 - Application: The Defendants are non-judge custodians. Therefore, the Supreme Court has delegated jurisdiction to this Circuit Court to resolve the public records dispute. Dismissal for lack of jurisdiction would violate the express mandate of Rule 2.420.

D.THE FACTUAL TRAP: "RECORDS DO NOT EXIST"

47. As stated above, there is some confusion in the facts as alleged in their Motion to dismiss, asserting that records of their communication with Attorney Davis "do not exist."

48. That representation is inconsistent with the correspondence and history of the case that suggests the documents exist or existed, but were simply not put in the "public record" by the custodian. (ApW, p. 9-10, 16-18, 283)

49. Regardless, whether the defendants' current story is the communications with Davis don't exist at all or exist, just not in the "public record," **it creates a fatal logical trap that precludes dismissal:**

1. Scenario A (They Exist): If the Bar communicated with Davis, those records are public under Rule 3-7.1(b) (correspondence "received from the respondent" is public upon closure. Withholding them violates the Constitution.

2. Scenario B (They Don't Exist): If the Bar generated zero records and received zero response from Davis, they have admitted to violating Rule 3-7.3, which requires a "complete investigation" before dismissal.

50. Either way, there are serious failures on the defendants' part in relation to fulfilling the ministerial duties required of their offices, necessitating further Court action to ensure confidence in our judicial system.

51. Defendants cannot claim internal correspondence is exempt. The Committee Notes to Rule 2.420 explicitly state: "The definition of judicial records also includes official business information transmitted via an electronic mail (e-mail) system."

52. By claiming these records “do not exist,” Defendants are ignoring the very rule definition that governs their conduct

D. DEFENDANT “RICK” COURTEMANCHE’S 55 PAGE OUTLINE FOR A SEMINAR ON FLORIDA PUBLIC RECORDS LAW CONTAINS IMPORTANT ADMISSIONS ON THE LAW AND THE BAR’S VIOLATIONS OF FLORIDA PUBLIC RECORDS LAW, AS TAUGHT BY DEFENDANT

53. One of the defendants in the case presented a seminar specifically on this topic, and his words are instructive.

54. Defendant Richard “Rick” Courtemanche presented to the Florida Records Management Association a seminar titled "**Florida Public Records Law**" Exhibit A to this motion.

55. In this presentation, Mr. Courtemanche—acting in his capacity as Deputy General Counsel for The Florida Bar—explicitly teaches the standards that contradict his own defense in this case.

56. Specifically, under the heading "LAST OF RICK’S RULES," Defendant Courtemanche instructs agencies: "If you have the record, it must be produced even if it could have been disposed of under your retention schedule." (Courtemanche Presentation, Slide 53).

57. The Mr. Courtemanche and the other Defendants cannot claim in this litigation that records are "non-existent" based on retention policies or internal scrubbing when their own internal expert teaches that possession mandates production.

58. Furthermore, Defendant Courtemanche’s training materials explicitly reject the notion that "internal" or "preliminary" documents are shielded from the public.

59. Defendant Courtemanche teaches that a document is a public record "Whether it is in final form or is designated by the agency as a ‘draft,’ ‘working copy,’ or ‘preliminary version.’" (Courtemanche Presentation, Slide 13). He further admits that "Inter-office

memos are public records as they are the final evidence of knowledge." (Courtemanche Presentation, Slide 13).

60. Consequently, any internal emails, notes, or drafts generated by Defendants Huston, Gangi, or Courtemanche regarding the "investigation" (or lack thereof) into Attorney Davis are public records by Courtemanche's own definition.
61. By withholding them, or claiming they "do not exist," the Defendants are violating the very "Rick's Rules" they teach to others and the constitutional mandate of Art. I, § 24 [Source 992].
62. Finally, Defendant Courtemanche advises: "Don't say NO unless you are sure." (Courtemanche Presentation, Slide 32). In their Motion to Dismiss, Defendants have now suggested, "No"—asserting that no other records of communication with Davis exist beyond the one provided – Davis pointing out a typographical error, immediately resulting in another letter by mail.
63. As outlined in paragraph 41 above, this assertion forces them into an admission that they failed to perform the mandatory investigation required by Rule 3-7.3 [Source 1007]. They cannot have it both ways: either the records exist and must be produced under Rule 3-7.1(b) [Source 993] and "Rick's Rules," or they do not exist, and the Defendants failed to perform their ministerial duties.
64. Regardless of how Defense counsel clarifies his statement that “no such records exist,” mandamus action is necessary to address the failure in ministerial duties related at minimum to the duty to investigate or duty to provide records.
65. Whether these records exist is a disputed question of fact that cannot be resolved on a Motion to Dismiss. Furthermore, if the Defendants' "non-existence" defense relies on a

narrow definition of "public record" to exclude internal emails, this contradicts established law and the Bar's own training.

F. ATTORNEY FEES

66. The Plaintiff is entitled to reasonable attorney's fees and costs. The Florida Supreme Court has explicitly held that a prevailing plaintiff is entitled to statutory attorney's fees when an agency unlawfully withholds records, regardless of whether the agency acted in "good faith" or honest error. *Bd. of Trs., Jacksonville Police & Fire Pension Fund v. Lee*, 189 So. 3d 120 (Fla. 2016).
67. However, in this case, the Defendants' conduct elevates this violation beyond mere error to willful non-compliance.
68. Defendant Courtemanche, the very official responsible for denying the records, authored training materials titled "Rick's Rules" which explicitly instruct: "If you have the record, it must be produced even if it could have been disposed of under your retention schedule."
69. By withholding records that exist but were not placed in the official "file"—a distinction Courtemanche himself teaches is irrelevant—the Defendants have violated their own internal standards.
70. This knowing disregard for the law justifies an award of fees to deter future misconduct and ensure compliance with the constitutional mandate of Article I, Section 24.

IV. CONCLUSION

71. The Florida Bar is the oversight agency tasked with maintaining honesty, good faith, and professionalism for about 100,000 attorneys in Florida.

72. Transparency serves as the primary safeguard against judicial overreach and corruption in self-regulated institutions like the Florida Judiciary.
73. The Bar failed to investigate clear and substantiated complaint while refusing to engage with complainant who suffered undisputed harm from this attorney misconduct. (ApW, p. 16-18, 283).
74. And now, the Bar is fighting transparency and sending mixed messages in violation of Florida Public Records law,
75. When one looks at the facts alleged and undisputed in Defendant's motion combined with the fact that the Deputy General Counsel, Mr. Courtemanche, is violating the practices he teaches for Florida officials and records compliance, it is deeply concerning.
76. His own training materials explicitly state: "If you have the record, it must be produced even if it could have been disposed of under your retention schedule." [Source 380]. The disparity between the Bar's public teachings and its private conduct in this case warrants judicial intervention.
77. The Court cannot dismiss this action based on the Defendants' extrinsic and disputed factual assertion that records "do not exist," particularly when that assertion contradicts the mandatory duties of their office. If the Bar followed its rules, the records must exist; if the records do not exist, the Bar admits it failed to follow its rules. Either scenario entitles the Plaintiff to relief.
78. The Defendants' Motion to Dismiss relies on cases clearly inapplicable to the present facts as Defendants conflate damages with mandamus and discretion with duty. *Tyson and Cole* (PIM, p. 63; ApW, p. 12, 283, MtD, p. 10)

79. The Defendants' Motion to Dismiss relies on conflating damages with mandamus and discretion with duty.

A. Jurisdiction: This Court has jurisdiction over the records claim under Rule 2.420(e)(2) and over the ministerial duty claim under Tyson.

B. Immunity: *Cole v. Owens* provides immunity from damages, not from a writ compelling compliance with mandatory rules.

C. Cause of Action: Plaintiff has pled a prima facie case that the Bar failed to perform the ministerial act of investigation and is unlawfully withholding records.

80. Plaintiffs set forth prima facie cases for relief unimpacted by the motion to dismiss citing cases that actually confirm the ministerial duty and plaintiff's entitlement to relief in these actions. (MtD, p. 10)

81. It's unreasonable and unlawful to dismiss this action by simply accepting Defendants' arguments that are essentially, "trust us" and "these laws don't apply to us." (ApW, p. 16-18, 283).

82. At a minimum, if the Court will not grant the writ, some discovery into the case is imperative for due process and to protect the integrity of the judiciary.

83. Plaintiff's Constitutional right at issue comes from the transparency provision, "adopted to ensure public access to all records that by law were made or received by the personnel of these institutions... judicial records are not exempt from this mandate absent a justified exemption." — *Media Gen. Convergence, Inc. v. Chief Judge of the Thirteenth Jud. Cir.*, 840 So. 2d 1008, 1013 (Fla. 2003)

84. The Florida Bar sat on their hands failing to investigate, then concealed relevant correspondence, and played semantic games to justify it.

85. The Court should not push the judiciary further in a direction where the 100,000 lawyers under it see this as an example of Florida Justice.

86. At a minimum, Plaintiff requests a hearing on this issues and a substantive order that makes findings of fact regarding the Court's basis for dismissing the Petition for Writ.

For these reasons, the Motion to Dismiss must be denied, and the Court should grant the petition, or the Defendants should be ordered to file an Answer within 5 calendar days, given that the period for a response already expired as the motion to dismiss was filed.

Respectfully submitted,

/s/ Christopher Hanson

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The background of the slide features a halftone dot pattern. In the upper left, there are several stylized water droplets of varying sizes. A large, irregular white shape, resembling a splash or a cloud, is positioned behind the main title. In the lower right, there are more realistic-looking water droplets, some with highlights and shadows, giving them a three-dimensional appearance.

Florida Public Records Law

TGIF EDITION

Florida Public Records Law

TGIF EDITION

Rick Courtemanche, The Florida Bar



Why Do People Make Public Records Requests?

- 1. The Requestor legitimately needs the records**
- 2. Conducting “audit” either personally or on behalf of some open government association/group**
- 3. Initiate public records litigation**
- 4. Embarrass the Agency**

ALL OF WHICH ARE IRRELEVANT!

**FLORIDA'S FIRST PUBLIC RECORDS LAW WAS PASSED
IN 1909 AND STATED:**

**“THAT ALL STATE, COUNTY AND MUNICIPAL RECORDS
SHALL AT ALL TIMES BE OPEN FOR A PERSONAL
INSPECTION OF ANY CITIZEN OF FLORIDA, AND THOSE IN
CHARGE OF SUCH RECORDS SHALL NOT REFUSE THIS
PRIVILEGE TO ANY CITIZEN.”**

CHAPTER 5942, ACTS 1909, SEC.1

Art. I, Sec. 24(a), Fla. Const. (1992)

- **“Every person has the right to inspect or copy any public record. . .This section specifically includes the legislative, executive, and judicial branches of government; . . . counties, municipalities, and districts; and each constitutional officer, board, and commission . . .”**
- **However, each branch has different laws or rules that regulate access to its records.**

Right of Access: Executive Branch

§119.011(2), F.S. - “Agency” means any state, county, district, authority, or municipal officer, department, division, board, bureau, commission, or other separate unit of government created or established by law...

- **Definition of “agency” was intended to apply only to executive branch agencies and their officers and to local governmental entities and their officers, which do not include the legislature itself, the judiciary, or independent constitutional entities.**

Locke v. Hawkes, 595 So.2d 32 (Fla. 1992)

Right of Access: Legislative Branch

§11.0431, F.S. –

(1) [E]very person has the right to inspect and copy records of the Senate and the House of Representatives received in connection with the official business of the Legislature as provided for by the constitution of this state...

(5) Nothing herein shall be construed to limit the authority of each house of the Legislature to adopt rules pursuant to s. 24, Art. I of the State Constitution.

The Rules of the Florida House of Representatives - 2020-2022

Rule 14.1—Legislative Records

There shall be available for public inspection, whether maintained in Tallahassee or in a district office, the papers and records developed and received in connection with official legislative business, except as provided in s. 11.0431, Florida Statutes, or other provision of law...

Florida Senate Rules and Manual - 2020-2022

1.48—Legislative records; maintenance, control, destruction, disposal, fee for copies, and disposition

**(1) Public records, not exempted from public disclosure,
may be inspected by any person desiring to do so at
reasonable times, under reasonable conditions, and under
supervision of the person who has custody of the records,
or that person's designee.**

Right of Access: Judicial Branch

Rule 2.420, Fla.R.Jud.Admin.

(a) ... The public shall have access to all records of the judicial branch of government, except as provided below....

(b)(2) --“Judicial branch” means the judicial branch of government, which includes the state courts system, the clerk of court when acting as an arm of the court, The Florida Bar, the Florida Board of Bar Examiners, the Judicial Qualifications Commission, and all other entities established by or operating under the authority of the supreme court or chief justice.

What is the definition of a “public record”?

- The term “public record” is broadly defined in law as “all documents, papers, letters, maps, books, tapes, photographs, films, sound recordings, data processing software, or other material, regardless of the physical form, characteristics, or means of transmission, made or received pursuant to law or ordinance or in connection with the transaction of official business by any agency.”
 - Section 119.011(11), F.S.
 - Section 11.0431(4), F.S.
 - Rule 2.420(b)(1), Fla.R.Jud.Admin.

What is the definition of a “public record”?

Shevin v. Byron, Harless, Schaffer, Reid, and Associates (379 So. 2d 633, Fla. 1980):

“...any material prepared in connection with official agency business which is intended to perpetuate, communicate, or formalize knowledge of some type.”

What is the definition of a “public record”?

- Whether it is in final form or is designated by the agency as a “draft,” “working copy,” or “preliminary version.”
- Any record that is circulated for review or shared for comment or information is a public record.
- Notes prepared for personal use, not shared, may not be public record if not intended to be final evidence of knowledge.
- Inter-office memos are public records as they are the final evidence of knowledge.

What is the definition of a “public record”?

- **Electronic Records are as much a public record as a paper document**
 - Seigle v. Barry, 422 So. 2d 63 (Fla. 4th DCA 1982)
- **Examples - Email messages, Social media posts, Text messages**
- **Section 119.01(2)(b), F.S. - Agency must consider, when designing or acquiring an electronic recordkeeping system, Whether the system is capable of providing data in a format consistent with public access.**

Tallahassee Democrat – 1/3/18

“City to Vote on Records Lawsuit Settlement”

- City of Tallahassee and Tallahassee Democrat attorneys have negotiated a settlement over a lawsuit alleging city officials violated the Florida Public Records Act...
- “The city has admitted it broke the state’s public records law and is now putting into place innovative new policies and procedures to make sure it doesn’t happen again.”...
- The suit alleges that City Manager Rick Fernandez, who is on a paid leave of absence pending the outcome of a state ethics investigation, deleted text messages that showed he asked a local lobbyist for four expensive sky box tickets to a Florida State football game in 2016.
- When a Democrat reporter asked the city to produce those text messages, the city said no such record existed.

What is the definition of a “public record”?

- Records not made in connection of official business are not public record. Determining factor is not where records housed but the nature of the record
 - State v. City of Clearwater, 863 So. 2d 149 (Fla. 2003)
- Example: A public employee who sends a proposed budget to a supervisor for review is a public record regardless of whether sent from the employee's government computer or from his or her home computer using a personal e-mail account.

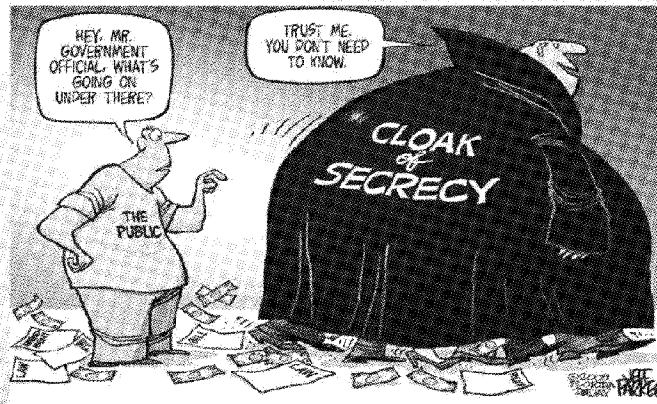
What is the definition of a “public record”? REQUESTS FOR INFORMATION

- Florida’s public records law requires an agency to provide access to public records. But an agency is not required to provide information from those records. AGO 92-38
- Florida’s public records law provides a right of access to inspect and copy an agency’s existing public records; it does not mandate that an agency create new records in order to accommodate a request for information from the agency. Wooten v. Cook, 590 So.2d 1039 (Fla. 1st DCA 1991)

Who Can Request Public Records?

**Art. I, Section 24, Florida
Constitution – “Every person
has the right to inspect or
copy any public record...”**

**SO THE ANSWER
IS ANYONE!**



REQUESTOR MOTIVATION

- A “person’s motive in seeking public records is irrelevant.” Timoney v. City of Miami Civilian Investigative Panel, 917 So.2d 885, 886n.3 (Fla. 3rd DCA 2005)
- “Even though a public agency may believe” that a requestor is annoying and making public record requests for the sole purpose of harassment, “the public records are available to all . . . ” Salvadore v. City of Stuart, No. 91-812 (Fla. 19th Cir. Ct. December 17, 1991)

REQUESTOR MOTIVATION

- The “law provides any member of the public access to public records, whether he or she be the most outstanding civic citizen or the most heinous criminal.” Church of Scientology Flag Service Org., Inc v. Wood, No. 97-688CI-07 (Fla. 6th Cir. Ct. Feb. 27, 1997)
- “The fact that a person seeking access to public records wishes to use them in a commercial enterprise does not alter his or her rights under Florida’s public records law.” Microdecisions, Inc. v. Skinner, 889 So.2d 871, 875 (Fla. 2nd DCA 2004)

PROCEDURAL REQUIREMENTS

Reasonable Conditions

- The right of access to public records “is virtually unfettered, save for statutory exemptions . . .” Thus, in the absence of a statutory exemption, the custodial agency must produce the requested records regardless of the number of records involved or the possible inconvenience to the agency.

Lorei v. Smith, 464 So. 2d 1330 (Fla. 2d DCA 1985)

PROCEDURAL REQUIREMENTS

Reasonable Conditions

EXECUTIVE BRANCH

- Absent specific statutory authority, an agency cannot require that:
 - Requests for records be made in writing. Dade Aviation Consultants v. Knight Ridder, Inc., 800 So.2d 302 (Fla. 3d DCA 2002)
 - A requestor disclose his/her name, address, or telephone number. AGOs 92-38 and 91-76
 - The reason for the request. Timoney v. City of Miami Civilian Investigative Panel, 917 So.2d 885, 886n.3 (Fla. 3rd DCA 2005)

PROCEDURAL REQUIREMENTS

Reasonable Conditions

JUDICIAL BRANCH

- **Rule 2.420 (i) (1) - Requests for access to records shall be in writing....**
 - **2002 Court Commentary:** The writing requirement is not intended to disadvantage any person who may have difficulty writing a request; if any difficulty exists, the custodian should aid the requestor in reducing the request to writing.

PROVIDING PUBLIC RECORDS: Who's responsible?

EXECUTIVE BRANCH

- **§119.011(5), F.S. - “custodian of public records” is defined in law as “the elected or appointed state, county, or municipal officer charged with the responsibility of maintaining the office having public records.**
- **§119.07(1)(b), F.S. - The custodian of public records is authorized to designate another to permit inspection and copying of public records, but must disclose the identity of the designee to those who are requesting to inspect or copy public records.**

PROVIDING PUBLIC RECORDS: Who's responsible?

EXECUTIVE BRANCH

- Although §119.011(5), F.S., defines “custodian of public records” as the person who is responsible for “maintaining the office having public records,” the Florida courts have concluded that the statutory reference to the records custodian does not alter the “duty of disclosure” imposed by s. 119.07(1) upon “every person” who has custody of a public record.”
- Puls v. City of Port St. Lucie, 678 So.2d 514 (Fla. 4th DCA 1996)

PROVIDING PUBLIC RECORDS: Who's responsible?

JUDICIAL BRANCH

- **Rule 2.420(b)(3), Fla.R.Jud.Admin. - The custodian of all administrative records of any court is the chief justice or chief judge of that court... As to all other records, the custodian is the official charged with the responsibility for the care, safekeeping, and supervision of such records. All references to “custodian” mean the custodian or the custodian's designee.**

RESPONSE TIME

- **How soon do I have to respond to a request?**
 - **The law and the court require that a response be in a reasonable time.**
 - **The courts have made it clear that public records are to be given attention.**
- *“The only delay permitted by the Act is the limited reasonable time allowed the custodian to retrieve the record and delete those portions of the record the custodian asserts are exempt”*

Tribune Co. v. Cannella, 458 So. 2d 1075 (Fla. 1984)

RICK'S RULES



- **READ THE REQUEST: WHAT ARE THEY ASKING FOR?**

- If you can't understand ask for clarification.
Sometimes a phone call makes sense.
- Many requestors don't understand the enormity of "any and all" . Call for clarification.
- Explain that there may be costs associated with the record request.

PROCEDURAL REQUIREMENTS ELECTRONIC FORMAT

- **Everyone has a right to public records in “some meaningful form, not necessarily that which the applicant prefers.” Seigle v. Barry, 422 So. 2d 63, 66 (Fla. 4th DCA 1982)**
- **An agency is not ordinarily required to reformat its records and provide them in the particular form as demanded by the requester. AGO 08-29**

PROCEDURAL REQUIREMENTS ELECTRONIC FORMAT

- **An agency must provide a copy of a public record in the format requested if the record is maintained in that format. If the record is not maintained in the format requested, an agency has the option of converting the record and charging a fee pursuant to s 119.07(4). F.S. - §119.01(2) (f), F.S.**
- **An agency is not required to provide public records in an electronic format other than the standard format routinely maintained by the agency. AGO 97-39**

RICK'S RULES CONT.

- **Ignore the legalese (or the camera)!**
- **Anyone who deals with the public should be trained on public records law DO'S and DON'TS.**
- **Don't be afraid to say "I don't know, let me check."**
- **Make sure someone in the agency is an expert.**

RICK'S RULES CONT.

- **Don't say NO unless you are sure.**
- **Responding promptly doesn't mean IMMEDIATELY!**
- **Give the requester an estimate of how long it will take to gather the records.**
- **No standing requests.**

RICK'S RULES CONT.

- **If you have the records and they are not covered by an exemption or confidentiality, produce them!**
 - **Make sure to check any location where responsive records might be found which includes database systems, email system, share drives, paper files, third party vendors, outside counsel, etc.**
- **Many agencies get in trouble when they try to hide records because they are embarrassing to someone**

Does the public get access to all records that meet the public records definition?

- **No**, Some records are either:
 - 1) **confidential or;**
 - 2) **exempt from access.**



CONFIDENTIAL: FLORIDA CONSTITUTION

- **Generally, Confidential records CANNOT be released to public – may be released only to those persons or entities designated in the statute**
- **Agency must take reasonable steps to ensure they are not improperly released**
- **Art. I, Sec. 24(b) - Legislature solely authorized to create exemptions “no broader than necessary to accomplish the stated purpose of the law.”**
 - **Passed by 2/3 of each house**

EXEMPTIONS

- **An “exemption” makes a specified record not subject to access requirements**
- **Generally, it is up to the discretion of the agency as to whether they want to release exempt records or not.**
- **Some Exemptions apply to a record for a period of time.**
- **Generally exemptions deal with personal or sensitive information about individuals, not government activities**
 - **i.e., personal identifying information or information of high risk of exploitation**

CONFIDENTIAL/EXEMPT EXECUTIVE BRANCH

- **119.071, F.S. - General Exemptions**
- **Other confidential records can be found throughout Florida Statutes – “are confidential and exempt from s. 119.07(1) and s. 24(a), Art. I of the State Constitution”**



CONFIDENTIAL/EXEMPT JUDICIAL BRANCH

Rule 2.420(c), Fla.R.Jud.Admin

- (7) records that are confidential under state and federal constitutions and laws,
- (8) records made confidential by court rule, Florida statutes, prior case law, and JQC rules.
- Although the bar isn't viewed as an agency under Chapter 119, Rule 2.420(c)(7) specifically adopts the statutory exemptions. State v. Buenoano, 707 So. 2d 714 (Fla.1990)

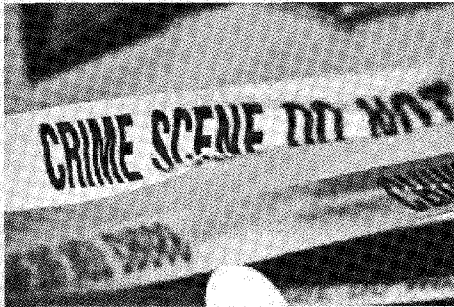
CONFIDENTIAL RECORD EXAMPLE

§119.071(2)(h)1.b., F.S. –

The following criminal intelligence information or criminal investigative information is confidential and exempt from s. 119.07(1) and s. 24(a), Art. I of the State Constitution:

- **Any information that may reveal the identity of a person who is a victim of any sexual offense, including a sexual offense proscribed in s. 787.06(3)(b), (d), (f), or (g), or chapter 794, chapter 796, chapter 800, chapter 827, or chapter 847.**

EXEMPTION - EXAMPLE



- §119.071(2)(c)1., F.S. - "Active criminal intelligence information and active criminal investigative information are exempt from s. 119.07(1) and s. 24(a), Art. I of the State Constitution."

EXEMPTIONS EXAMPLES

- **§119.071(4)(d), F.S. – Home addresses, phone numbers, photographs, and dates of birth, etc.:**
 - **Current or former Law enforcement, judges, prosecutors, public defenders, firefighters, DCF investigators, Code enforcement officers, county tax collectors, GAL's, DBPR investigators, etc.**
- **Agencies with this information that are not employers may maintain exemption only upon written request**

CLAIMING EXEMPTION/REDACTION

- **First, determine if the entire record is exempt or just a portion of the record.**
- **If entire record is exempt, state the basis for exemption and do not provide record.**
- **If a portion is exempt, redact the exempt information and state the basis for the exemption.**
- **Do not restrict access to the part of the record that is not confidential or exempt.**

RICK'S RULES AD NAUSEUM

- **Make sure redaction is permanent**
- **Redact with a scalpel, not a meat cleaver**
- **Know your Exemptions/Citations**
- **Cite your Exemptions with Specificity in your Response (§119.07(1)(e), F.S.)**

FEES FOR PUBLIC RECORDS

- **Executive Branch - §119.07(4), F.S. authorize and establish fees for copies and labor**
- **Judicial Branch - Fla.R.Jud.Admin. 2.420(m)(3)**
 - “except for copies of court records... the same as those provided in section 119.07, Florida Statutes.”



FEES FOR PUBLIC RECORDS SPECIAL SERVICE CHARGE

§119.07(4)(d), F.S. - An agency may charge a reasonable fee for the extensive use of agency resources – personnel, information technology, or both – in addition to the actual cost of duplication.

- **Such fees must be reasonable and based on actual costs incurred.**
- **“Extensive” is not defined – agencies should have policies in place to define what is extensive, i.e. more than 15 minutes, 30 minutes, 1 hour ,etc.**

FEES FOR PUBLIC RECORDS ADVANCE DEPOSIT

- **Section 119.07(4), F.S. - The custodian of public records must furnish a copy or a certified copy of the [requested] record upon payment of the fee prescribed by law.**
- **Custodial agencies are authorized to require the payment of an advance deposit before proceeding with the effort and cost of preparing copies of requested public records.**
Malone v. City of Satellite Beach, No. 94-10557-CA-D (Fla. Cir. Ct. Brevard Co. December 15, 1995)

FEES FOR PUBLIC RECORDS

Chapter 119 does not contain a provision that prohibits agencies from charging indigent persons or inmates the applicable statutory fee to obtain public records.



MORE RICK'S RULES

- **Many people will want to inspect records because they are too cheap to pay.**
- **Labor can be charged even for inspection.**
- **Get paid BEFORE you do the work.**
- **It's Ok to put a deadline on payment.**
 - **"If we do not receive payment within 30 days, we will assume you no longer wish to receive the requested records, and we will close your request."**

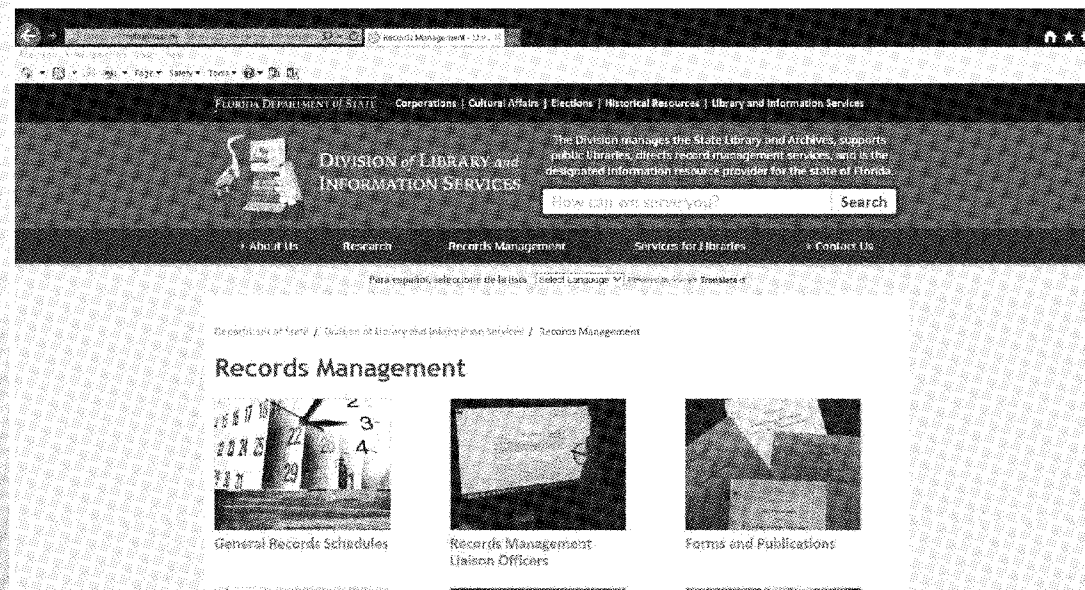
RECORD RETENTION REQUIREMENTS

- **Retention period of a record is the duration of time for which the information should be maintained by an agency.**
- **Based on federal and state laws and regulations, general administrative practices, and fiscal management principles.**
- **Generally are minimum retention periods; public agencies may retain their records longer at their discretion.**

RECORD RETENTION REQUIREMENTS **EXECUTIVE BRANCH**

- **§119.021(2)(a), F.S., requires the Division of Library and Information Services (DOS) to adopt rules establishing retention schedules and a disposal process for public records.**
- **§257.36(6), F.S., says that public records can be destroyed or otherwise disposed of “only in accordance with retention schedules established by the division.”**

HTTP://DOS.MYFLORIDA.COM/LIBRARY-ARCHIVES/RECORDS-MANAGEMENT/



RECORD RETENTION REQUIREMENTS

JUDICIAL BRANCH

- **Rule 2.430, FL.R.Jud.Admin. – Retention of Court Records**
 - **Permanently Recorded Records vs. Records Not Permanently Recorded**
- **Rule 2.440, FL.R.Jud.Admin – Retention of Judicial Branch Administrative Records**
 - **(b) Retention Requirements. Administrative records in the judicial branch shall be retained in accordance with the Judicial Branch Records Retention Schedule approved by the supreme court.**

LAST OF RICK'S RULES

- If you have the record, it must be produced even if it could have been disposed of under your retention schedule.
- Don't tolerate hoarders!



RESOURCES

Government in the Sunshine Manual

The First Amendment Foundation

336 East College Avenue, Suite 101

Tallahassee, Florida 32301

Phone: 850-224-4555; Fax 850-224-0435

www.floridafaf.org

E-manuals Available!

Florida Attorney General's Website

<http://myfloridalegal.com/pages.nsf/Main/314BA231F89C0C8A8525791B006A54E2>

QUESTIONS?

